

Jagdish Pal Singh v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 18 February 2011 · WRIT - C No. 9784 of 2011 · **Writ disposed; bill complaint directed to Executive Engineer under clause 6.5.**

HEADNOTE

A writ pressing only a dispute over a bill said to include amounts already deposited was disposed of by consent. The Court, noting the licensee's submission that clause 6.5 of the U.P. Electricity Supply Code, 2005 afforded a remedy of appeal before the Executive Engineer, directed that officer to consider and decide any complaint in accordance with law, preferably within six weeks of filing and without a delay objection. If the complaint was filed within two weeks, the connection was not to be disconnected only for non-payment of that bill until the complaint was decided.

FACTUAL SUMMARY

The petitioner, Jagdish Pal Singh, challenged an electricity bill for 13 October 2010 to 14 November 2010, contending that it included amounts already deposited for which no adjustment had been given. Several prayers were made; only this bill was pressed. The Executive Engineer, Electricity Urban Distribution Division-II, Aligarh was impleaded as respondent no. 5. Counsel for the contesting electricity respondents submitted that under clause 6.5 of the U.P. Electricity Supply Code, 2005 the petitioner had a remedy of appeal before that officer.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

Where the consumer pressed only a grievance that a bill included amounts already deposited without adjustment, and the licensee pointed to the clause 6.5 remedy before the Executive Engineer, the writ was disposed of by consent directing that officer to consider and decide any complaint in accordance with law, preferably within six weeks of filing, without a delay objection, and restraining disconnection for non-payment of that bill until decision if the complaint was filed within two weeks. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE BILL FOR 13.10.2010 TO 14.11.2010 INCLUDED AMOUNTS ALREADY DEPOSITED AND DUE FOR ADJUSTMENT

Merits of the billing objection were left to the Executive Engineer under clause 6.5. ¶ 1